

২০
বাংলা-দশ সুপ্রীম-কোর্ট
হাই-কোর্ট বিভাগ

আপীল সম্পর্কিত
-ফৌজদারী

জিলা -Rajbari

439/435

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
নং

Md. Abdul Hakim

আবেদনকারী

মাধ্যম Mr. Muhammad Rezaul Kabir Khan, Advocate

বনাম

The State

প্রতিপক্ষ

Mr. Syed Bashir Hossain Chowdhury, A.A.G with
Mr. Md. Hatem Ali, A.A.G

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডাদেশ

Present:

Mr. Justice Md. Shohrowardi

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	<u>27.08.2024</u>	Record be called for. Let a Rule be issued calling upon the opposite parties to show cause as to why the judgment and order of acquittal dated 05.06.2024 passed by Additional Sessions Judge, Court No.2, Rajbari in Criminal Appeal No. 166 of 2023 allowing the appeal and acquitting opposite-party Nos. 2-8 and thereby reversing the judgment and order of conviction and sentence dated 04.06.2023 passed by Chief Judicial Magistrate, Rajbari in G.R. No. 16 of 2017 (Pangsha) arising out of Pangsha Police Station Case No. 16 dated 26.01.2017 convicting the opposite-party Nos. 2-3 under section 447 of the Penal Code, 1860 and	

		sentencing them to suffer rigorous imprisonment for 02 (two) months and to pay a fine of Tk. 300, in default, to suffer simple imprisonment for 05(five) days more and also convicting the accused-opposite-party Nos. 2-3 under section 323 of the Penal Code, 1860 and sentencing them to suffer rigorous imprisonment for 06 (six) months and to pay a fine of Tk. 500, in default, to suffer simple imprisonment for 10(ten) days more and convicting the opposite-party Nos. 4-5 under section 447 of the Penal Code, 1860 and sentencing them to suffer rigorous imprisonment for 02 (two) months and to pay a fine of Tk. 300, in default, to suffer simple imprisonment for 05(five) days more and also convicting the opposite-party Nos. 6-8 under section 447 of the Penal Code, 1860 and sentencing them to suffer rigorous imprisonment for 02 (two) months and to pay a fine of Tk. 300, in default, to suffer simple imprisonment for 05(five) days more, all the sentence will be run concurrently should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper. The Rule is made returnable within 4(four) weeks from date. The opposite parties are directed to surrender before the Additional Sessions Judge, Court No. 2, Rajbari forthwith. The Additional Sessions Judge, Court No. 2, Rajbari is directed to enlarge the opposite parties on bail if he surrender.

